



2026:AHC:91704-DB

## HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 10722 of 2026

Shahvez Abdullah

.....Petitioner(s)

Versus

State Of U.P. And 6 Others

.....Respondent(s)

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|---------------------------|---|--------------------------|
| Counsel for Petitioner(s) | : | Ali Hasan, Istiyaq Ali   |
| Counsel for Respondent(s) | : | C.S.C., Pranjal Mehrotra |

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**Court No. - 1**

**HON'BLE AJIT KUMAR, J.**

**HON'BLE INDRAJEET SHUKLA, J.**

1. Heard Mr. Istiyaq Ali, learned counsel appearing for the petitioner and Mr. Ram Chandra, learned Advocate holding brief of Mr. Pranjal Mehrotra, learned Counsel for the Electricity Department.
2. By means of this writ petition filed under Article 226 of the Constitution of India, petitioner has prayed for quashing of the recovery citation dated 07.10.2025 issued by respondent no.6.
3. It is submitted by learned counsel for the petitioner that no provisional assessment notice was ever issued to the petitioner to enable him to file objection under Electricity Supply Code, 2005.
4. Mr. Ram Chanra, learned Advocate has placed instructions, which are taken on record, copy of which is also supplied to learned counsel for the petitioner.
5. From the instructions it transpires that the final assessment order has come to be passed on 24.03.2026. It further transpires that this order was based upon provisional assessment notice issued on 27.03.2025 and the recital contained in the order is to the effect that petitioner did not submit reply despite given time to file objections, however, from the perusal of records we do not find there to be any receipt appended along with instructions so as to draw inference that the petitioner was duly served with the provisional assessment notice.

6. In the circumstances, therefore, while taking judicial notice of the order dated 24.03.2026, which is final assessment order, we **dispose of** this petition with a direction to the petitioner to treat the final assessment order as provisional assessment and file his objection within four weeks from today. We further provide that in the event petitioner files his objection within four weeks from today, no coercive action shall be taken against him pursuant to recovery notice. Further, in the event, the petitioner files an objection, he shall be afforded opportunity of hearing and final assessment order shall be passed within a further period of one month. In the circumstances, the recovery citation dated 24.03.2026 is put in abeyance to abide by final outcome/decision taken by the authorities concerned.

**(Indrajeet Shukla,J.) (Ajit Kumar,J.)**

**April 23, 2026**  
S.P.